

Tentative Rulings for July 30, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407937	ROUSE VS WALMART, INC.	MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

Tentative Ruling: A cross-complaint is either compulsory or permissive. A cross-complaint is compulsory if the cause of action arises out of the same transaction, occurrence or series of transactions or occurrences as the cause of action in the complaint. (Code Civ. Proc. § 426.10(c).) Thus, the factual or legal issues are logically related. (*Currie v. Medical Specialties, Inc. v. Bowen* (1982) 136 Cal.App.3d 774, 777.) “[T]he relatedness standard requires not an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal. App. 4th 949, 960.) The related cause of action must have existed at the time the defendant served its answer to the complaint. (Code Civ. Proc. § 426.30(a).)

If the cross-complaint is compulsory, the court shall grant leave as long as defendant is acting in good faith. (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.; Code Civ. Pro. §426.50.) Factors such as oversight, inadvertence neglect or mistake are insufficient grounds to deny the motion unless there is a showing of bad faith. (*Silver*, supra, 217 Cal.App.3d at 99.) Bad faith must be shown by substantial evidence. (*Id.*)

If a cross-complaint is permissive, under Code of Civil Procedure section 428.50(c), a party shall obtain leave to file a cross-complaint and leave may be granted in the interest of justice at any time during the course of the action. At any time during the lawsuit, the court retains power to permit defendant to file a cross-complaint to avoid forfeiture of the defendant’s related claim. (*Silver*, supra, 217 Cal.App.3d at 98-99.) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (*Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.)

Contrary to Defendant’s assertion, the proposed cross-complaint is permissive. “There are no compulsory cross-complaints against parties other than plaintiff.” (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §6:524 (Rutter Group 2026).) Defendant seeks to sue a third party, rendering the proposed cross-complaint permissive.

Defendant brings an equitable indemnity claim, which is transactionally related to Plaintiff’s claims. “[A] cross-complaint for comparative equitable indemnity is almost by definition transactionally related to the claims asserted by the plaintiff, because a claim for equitable indemnity depends on the allegation that the same harm for which plaintiff seeks to hold defendant liable is properly attributable, at least in part, to the acts of the cross-defendant. [Citation.] An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (*Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.* (1991) 230 Cal.App.3d 30, 39.) While the court acknowledges the issues with service of a foreign company, trial is not set. It is in the interests of justice to bring a cross-complaint against manufacturer Ninghai Yongo for the indemnity claim.

Motion for Leave to File Cross-Complaint GRANTED.

Defendant Applied Mobility Device LLC to file cross-complaint within 10 days.

Trial Setting Conference continued to 3.10.27.

OSC re Proof of Service of Cross-Defendant Ninghai Yongo set for 2.10.27.

OSC re TSC declaration is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501303	MERCIER VS INVESTMENT CONCEPTS, INC	MOTION TO BE RELIEVED AS COUNSEL FOR TAMAR MERCIER

Tentative Ruling:

Motion to be Relieved as Counsel: GRANTED.

Attorney is relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court upon the client.

Trial Setting Conference is continued 9.29.26. Case is returned back to active status.

Status hearing re representation for Plaintiff Tamar Mercier is set for 9.29.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: No tentative ruling. Hearing is continued to 8.31.26 to be heard after the Informal Discovery Conference calendared for 8.14.26.

An OSC re Related Case for CVPS 2605423 is set for 8.31.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: No tentative ruling. Hearing is continued to 8.31.26 to be heard after the Informal Discovery Conference calendared for 8.14.26.

An OSC re Related Case for CVPS 2605423 is set for 8.31.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: No tentative ruling, hearing is continued to 7.31.26 to be heard with other two discovery motions.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507919	KAMRAN VS MARRIOTT INTERNATIONAL, INC.	MOTION FOR TRIAL PREFERENCE BY MEHRNOOSH KAMRAN

Tentative Ruling: CCP § 36(a) provides that a party who is over 70 years of age may petition the court for preference, “which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) The purpose of trial preference under Section 36 is “to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.” (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Where a party meets the requisite standard for calendar preference based on the party’s health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Trial must be set within 120 days even if opposing parties have not completed discovery or pretrial preparations. (*Swaithe v. Sup. Ct. (Hunter)* (1989) 212 Cal.App.3d 1082, 1086.) However, the court still must find that Plaintiff has a substantial interest in the action and his health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit “based upon information and belief as to the medical diagnosis and prognosis.” (CCP § 36.5; see also *Fox v. Sup. Ct., supra*. 21 Cal.App.5th at 534 [no doctor’s declaration is required under the standard of subdivision (a)].)

Here, Plaintiff’s counsel, Matthew Novian, submitted a declaration stating Plaintiff is 73-years-old (Dec. Novian ¶ 4), which is undisputed. Mr. Novian asserts that Plaintiff has a substantial interest in the outcome of this action, which is also undisputed. (*Id.* ¶ 5.) He summarizes Plaintiff’s fall and her resulting medical treatment. (*Id.* ¶¶ 6-13.) By 12/22/25, Plaintiff’s orthopedic surgeon noted her right knee was “severely arthritic”, painful, and deteriorating. (*Id.* ¶ 14.) Plaintiff had a total knee replacement surgery on 2/17/26. (*Id.* ¶ 15.) Her right shoulder has also deteriorated from a partial to a complete rotator cuff tear requiring physical therapy. (*Id.* ¶ 16.) Mr. Novian then concludes that due to her age, deteriorating health conditions, and significant injuries, there is a substantial risk that delay in bringing this matter to trial will prejudice Plaintiff’s interests. (*Id.* ¶ 17.)

To the contrary, Marriott’s counsel, Saleem Hawathmeh, declares that there is nothing in Plaintiff’s medical records that suggests she “suffers from any condition that

threatens her survival, her cognition, or her capacity to attend and meaningfully participate in a trial set in the ordinary course.” (Dec. Hawathmeh ¶ 3.)

Based on the medical records, there is no dispute that Plaintiff was injured in the fall. However, Plaintiff’s counsel’s declaration is the only one provided concerning her health condition.

Marriott persuasively argues that Plaintiff has not asserted that she suffers from any health condition that threatens her survival, her cognition, or her capacity to attend/participate in a normally set trial. This is important as it does not appear Plaintiff’s current health condition will adversely affect her ability to participate in the trial. Her injuries were primarily physical. Neither Plaintiff nor her counsel assert that Plaintiff is experiencing a terminal or even chronic illness nor rapid cognitive decline that would support a trial preference. Certainly, Plaintiff’s advanced age could potentially support a motion for trial preference based on CCP § 36(a) along with a finding that Plaintiff has a substantial interest in the action, both of which are conceded by Marriott. However, the Court must further find that her health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Here, Plaintiff has not established that a preference is necessary to prevent prejudicing her interest. Should Plaintiff obtain evidence to demonstrate a “cognitive decline”, or establish a sufficient basis for a preference, she is not foreclosed from bringing another motion. Additionally, the court does not find that preference should be granted in the interests of justice pursuant to CCP 36(e).

Motion for Trial Setting Preference DENIED.

Case Management Conference and OSC continued to 9.14.26.

Plaintiff’s counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and also address Counsel’s failure to appear at the Case Management Conference on 5.12.26. Do not use Judicial Counsel form CM-110. Failure to comply will result in sanctions.

Defendant not ordered to submit an updated CMC statement at this time.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION TO QUASH SUBPOENA

Tentative Ruling: A subpoena “is a writ or order directed to a person and requiring the person’s attendance at a particular time and place to testify as a witness. It may also require a witness to bring any books, documents, electronically stored information, or other things under the witness’s control which the witness is bound by law to produce in evidence.” (C.C.P. § 1985(a).) `

“[T]he court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate

to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (C.C.P. § 1987.1.)

Procedural Issues

Plaintiff’s Argument:

Plaintiff argues that Defendants used the wrong subpoena, as they served Baron with Judicial Council Form SUBP-002, which Plaintiff alleges is a trial subpoena. Defendants contend that the subpoena “requires Ms. Baron to appear for deposition on July 30, 2026.” (Opp., p. 3.) Accordingly, Plaintiff is correct that Defendants have served the wrong subpoena, as the correct form is Judicial Council Form SUBP-020, a deposition subpoena.

Defendants’ Arguments:

Defendants contend the motion is procedurally defective because Plaintiff failed to meet and confer and because the motion is premature and lacks a separate statement.

There are no meet and confer requirements for a motion to quash, as specified under C.C.P. § 1985.3, 1985.6 and 1987.1.

A motion to quash must be served on the witness and deposition officer at least five days before the date set for production. (C.C.P. §§ 1985.3(g), 1985.6(f).) Here, Plaintiff’s motion is timely, as it was served before the date set for production. Although Defendants contend that the motion is premature because it was filed before Defendants served Baron on July 18, 2026, the motion is not set to be heard until July 30, 2026, after service was effected. Accordingly, Defendants’ timeliness argument is unavailing.

As for a separate statement, California Rule of Court, Rule 3.1345(a)(5) requires a separate statement “[t]o compel or to quash the production of documents or tangible things at a deposition.” The process by which a nonparty is required to provide discovery qualifies as a deposition subpoena. (C.C.P. § 2020.010(b).) A separate statement is not required when no response has been provided to the discovery. (C.R.C. Rule 3.1345(b)(1).) Here, however, Plaintiff served objections to the Subpoena on July 16, 2026. (Kaoud Decl., Exh. 5.) Therefore, a separate statement is required.

A trial court is “well within its discretion” to deny a motion to compel production of documents that lacks a separate statement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893, 83 Cal.Rptr.3d 146 [discussing former Rule 3.1020, which requires a separate statement on a motion to compel further production of documents].) However, the lack of a separate statement does not limit a trial court’s discretion to grant the motion “notwithstanding the absence of a separate statement.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409, fn. 14 [discussing former Rule 3.1020].) The Court exercises its discretion to consider the merits of the motion in the absence of a separate statement.

The Subpoena requests that Baron appear and produce documents as to the following categories:

1. All communications between you and Plaintiff Kent Pearce (“Plaintiff”) concerning this action.
2. All notes, memoranda, summaries, chronologies, outlines, or other documents you created or maintained concerning this action.

3. All documents concerning this action and Plaintiff's employment.
4. All of your AI searches, prompts, queries, chat histories, results, summaries, outputs, or related documents concerning this action.

(Kaoud Decl., Exh. 4.)

Plaintiff contends that the Subpoena violates privacy rights, attorney-client privilege, and the attorney work product doctrine.

Privacy Rights:

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 [applying to third party privacy rights].)

Plaintiff contends that the Subpoena violates his and Baron's privacy rights, as the requested documents may implicate family conversations or personal AI searches. However, Plaintiff has not cited any authority to support that family conversations are protected by a legally cognizable privacy right. Further, the Subpoena narrowly tailors the requests to all communications, documents, and AI searches "concerning this action." Thus, Plaintiff fails to justify his privacy objection.

Attorney-Client Privilege:

The party asserting the privilege must present facts supporting a prima facie claim of privilege; only then does the opposing party have the burden of showing that the privilege does not apply, an exception applies, or there was a waiver. (*Oxy Resources California, LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 894.)

The attorney-client privilege prevents the disclosure of confidential communications between attorney and client. (*Mitchel v. Superior Court* (1984) 37 Cal.3d 591, 599.) "The attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer...." (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732 [internal citation and quotations omitted].)

Here, Plaintiff concedes Baron is his daughter and is "not an attorney, paralegal, or other legal professional." (Pearce Decl., ¶ 2.) Accordingly, the attorney-client privilege does not apply to Baron's communications with Plaintiff (Category 1) because Baron is not an attorney, and Plaintiff is not her client.

Attorney Work Product Doctrine:

Attorney work product pertains to an attorney's thoughts, impressions, or legal theories on a matter. (*County of Los Angeles v. Superior Court* (2000) 82 Cal.App.4th 819, 833.) The work product privilege "may also be asserted by a pro se litigant because the privilege 'is intended for the protection of litigants, not just attorneys.' [Citation.]" (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 977.)

Under C.C.P. § 2018.030, the attorney work product doctrine provides two levels of protection – absolute or qualified. "A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories" falls within the absolute protection and is not discoverable under any circumstance. (C.C.P. § 2018.030(a).) All other work product of an attorney "is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (C.C.P. § 2018.030(b).)

"[T]he Legislature in enacting section 2018.030 did not define 'work product' and instead left the term open to judicial interpretation." (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 494.) Courts have defined "attorney work product" as "the product of the attorney's 'effort, research, and thought in the preparation of his client's case. It includes the results of his own work, and the work of those employed by him or for him by his client, in investigating both the favorable and unfavorable aspects of the case, the information thus assembled, and the legal theories and plan of strategy developed by the attorney—all as reflected in interviews, statements, memoranda, correspondence, briefs, and any other writings reflecting the attorneys 'impressions, conclusions, opinions, or legal research or theories' and in countless other tangible and intangible ways.' " (*Meza, supra*, 176 Cal.App.4th 969, 977, quoting *BP Alaska Exploration, Inc. v. Superior Court* (1988) 199 Cal.App.3d 1240, 1253-1254, fn. 4; see *Citizens for Ceres v. Superior Court* (2013) 217 Cal.App.4th 889, 911 ["Work produced by an attorney's agents and consultants, as well as the attorney's own work product, is protected by the attorney work product doctrine."].)

Plaintiff seeks attorney work product protection over Baron's communications, AI searches, and litigation research or preparation, arguing, "[t]he work product belongs to the party who created or directed its creation. If Ms. Baron assisted her father with any litigation research or preparation, those materials were created at Plaintiff's direction for litigation purposes — the very definition of work product. Serving a subpoena on the person who assisted does not strip the protection; it reinforces it." (Motion, p. 8.) In essence, Plaintiff is arguing that any communications, documents, or AI searches created by Baron regarding this action were created in her capacity as Plaintiff's agent. The work product protection extends to cover the work product of an attorney's [or pro se litigant's] agents, including investigators and researchers. (See *Rodriguez v. McDonnell Douglas Corp.* (1978) 87 Cal.App.3d 626, 647-648, disapproved on other grounds by *Coito, supra*, 54 Cal.4th at 499; see also *Citizens for Ceres, supra*, 217 Cal.App.4th at 911; *Meza, supra*, 176 Cal.App.4th at 977; *Southern Calif. Edison Co. v. Sup. Ct.* (2024) 102 Cal.App.5th 573, 586-587.) As such, Plaintiff has established that the documents sought in Categories 1 through 4 are subject to qualified work product protection.

Defendants argue that good cause exists to compel the disclosure of the subpoenaed documents because Plaintiff identified Baron as someone who reviewed a key agreement underlying his wrongful termination lawsuit and gave opinions regarding the details of his claims, including that Plaintiff had a "good case" based on such details. (Opp., p. 5.) However, Baron is not an attorney, paralegal, or legal professional, and

Defendants do not provide any argument as to how Baron's lay opinions as to the merits of her father's case are relevant to overcome the qualified privilege of work product protection. Further, "[a] bare showing of 'good cause' is *not enough* to compel production of materials constituting attorney work product. Instead, [a] court will order disclosure of such materials only if the party seeking discovery can demonstrate injustice or unfair prejudice, *a much heavier burden*." (*People v. Hunter* (2017) 15 Cal.App.5th 163, 182, quoting Weil & Brown, *Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2017) § 8:241.3, p. 8C-81 [original italics, quotations omitted].) Defendants have failed to demonstrate any good cause, let alone the required injustice or unfair prejudice, sufficient to overcome the work product protection over the subpoenaed documents at issue.

Motion to Quash Subpoena GRANTED.

Defendant's Request for Sanctions DENIED.

Motions to Compel confirmed for 9.16.26.